

		Here, the undisputed facts establish each of these elements. The Lease provides that Plaintiff is the owner of and has title to the Vehicle, and if MMJ failed to make any payment when due, Plaintiff could take possession of the Vehicle. (UMF 3-4.) Plaintiff assigned 22 of the Initial Term payments FPL. (UMF 10.) Following MMJ's payment of the Initial Term payments, FPL reassigned all right, title and interest to the Lease and the Vehicle back to Plaintiff. (UMF 12- 14.) Beginning November 2022, MMJ defaulted on the Lease when it stopped making the monthly payments. (UMF 16-17.) On or about 1/12/23, Plaintiff made demand upon Defendants for payment of the past due amounts and return of the Vehicle; however, they failed and refused to do so. (UMF 19-20.) Plaintiff commenced this action on 1/18/23. These facts establish Plaintiff had the right to immediate and exclusive possession to the Vehicle at the time it commenced this action and Defendants refused Plaintiff's pre-litigation demand to return the Vehicle. Accordingly, Plaintiff has met its initial burden. Defendants have failed to timely oppose the motion and, therefore, have failed to establish triable issues of material fact. Plaintiff's motion for summary judgment is granted.
13	25-01480023 <i>Rodriguez vs. Richardson</i>	Motion to Appear Pro Hac Vice The Application of Matthew Kleifield to Appear Pro Hac Vice for defendants Jamee Paige Richardson and Benjamin Richardson is GRANTED. Moving attorney has satisfied all the requirements of California Rules of Court, Rule 9.40. Moving attorney to give notice.